

21STCV26907 21STCV26907

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Case Number: 21STCV26907 Hearing Date: July 30, 2026 Dept: 731

[TENTATIVE] ORDER RE: APPLICATION

FOR PRO HAC VICE ADMISSION OF KENNETH J. PEACE TO APPEAR AS COUNSEL FOR
DEFENDANT

Background Facts

Plaintiff Ernest Melendrez sues

various Defendants pursuant to an October 26, 2022, First Amended Complaint ("FAC")
alleging various statutory and common law claims arising from Plaintiff's
employment with Defendant, who alleges to have experienced disability
discrimination and unlawful termination during that employment.

Now before the Court is a pro hac

vice application for admission of Kenneth J. Peace, Esq., as counsel for
Defendants, which Plaintiff Melendrez opposes.

Application for Pro

Hac Vice Admission

a.

Legal Standard

Out-of-state counsel may appear

before a California court as counsel pro hac vice. (Birbrower, Montalbano,
Condon & Frank v. Superior Court (1998) 17 Cal.4th 119, 130, as
modified, Feb. 25, 1998.) To do so, out-of-state counsel must comply with
requirements established in California Rules of Court, rule 9.40(a), (c), (d),
and (e). (See Cal. Rules of Court, rule 9.40.)

A Pro Hac Vice application may be denied where: (1) the application fails to follow the precepts of California Rules of Court, rule 9.40(c), (d) or (e); (2) the applicant is a California resident, regularly employed in California, or has other activities in California, (Cal. Rules of Court, rule 9.40(a)(1)-(a)(3)); or (3) absent special circumstances, the applicant has made repeated appearances under rule 9.40, (Cal. Rules of Court, rule 9.40(b)).

b. Discussion

i.

Plaintiff's Opposition Arguments

The Court initially notes that Plaintiff's opposition arguments are no longer applicable or unavailing.

The opposition was filed as a declaration on the same day that the pro hac vice application was filed, i.e., June 1, 2026, on which date trial was set for June 15, 2026, a mere 14 days later. However, on June 5, 2026, the Court continued trial to July 13, 2026, and, pursuant to a July 13, 2026, stipulation by the parties at the final status conference, was further continued to October 23, 2026. Therefore, the arguments in the opposition relating to proximity of trial date supporting a denial of relief no longer apply.

As for Plaintiff's other arguments—essentially that pro hac vice counsel is too often practicing law in California and current defense counsel is more than adequately staffed to handle this case—they are unavailing because the Court does not agree with the first position, as reflected by the facts in the Peace declaration, and the second point is irrelevant to whether relief should be granted.

ii.

Cal. Rules of Court, rule 9.40(a)

Moving to the merits, the pro hac vice application satisfies this rule of court, which requires that a pro hac vice application demonstrate that the applicant is:

(1)

A member in good standing of another state bar eligible to practice in any United State courts or the highest court in another jurisdiction (see Amended Application, Peace Decl., ¶ 6 [admission in four states]); and

(2)

Associated with an active member of the California Bar as attorney of record (id. at ¶ 10).

(Cal. Rules of Court, rule 9.40(a).)

iii.

Cal. Rules of Court, rule 9.40(c)

The pro hac vice application satisfies this rule of court, which requires that when a pro hac vice application is filed in a superior court, that application and its proof of service must satisfy the requirements set out in California Rules of Court, rule 9.40(c)(1), under which the applicant must:

(1) File with the court a verified application (see Amended Petition, Peace Decl., ¶ 1 & verification);

(2) File a proof of service showing service of the application and the notice of hearing on all parties who have appeared in the case and on the State Bar of California at its San Francisco office (see Amended Petition, Peace Decl., ¶ 11 & Proof of Service [service on other parties and on State Bar via portal]); and

(3) Provide notice of hearing in the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period (see Amended Petition, Proof of Service).

(See Cal. Rules of Court, rule 9.40(c)(1).)

iv.

Cal. Rules of Court, rule 9.40(d)

The pro hac vice application satisfies
this rule of court, which requires that a pro hac vice application provide:

(1) The applicant's residence and
office address (Amended Petition, Peace Decl., ¶¶ 3, 4);

(2) The courts to which the
applicant has been admitted to practice and the dates of admission (id.
at ¶ 6);

(3) That the applicant is a
licensee in good standing in those courts (id. at ¶ 7);

(4) That the applicant is not
currently suspended or disbarred in any court (id. at ¶ 8);

(5) The title of each court and
cause in which the applicant has filed an application to appear as counsel pro
hac vice in this state in the preceding two years, the date of each
application, and whether or not it was granted (id. at ¶ 9); and

(6) The name, address, and
telephone number of the active licensee of the State Bar of California who is
attorney of record (id. at ¶ 10).

(Cal. Rules of
Court, rule 9.40(d)(1)-(d)(6).)

v.

Cal. Rules of Court, rule 9.40(e)

The pro hac vice application satisfies this
rule of court, which requires that a pro hac vice application show payment of
the required fee set by the State. (Amended Petition, Peace Decl., ¶ 12.)

c. Conclusion

Accordingly, Kenneth J. Peace's application is GRANTED.

Defendants are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.